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ROSS STORES, INC.
and ROSS DRESS FOR LESS, INC.

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

BRENDAN NGWA NFORBI; Plaintiff, vs. ROSS STORES, INC., a Delaware corporation; ROSS DRESS FOR LESS, INC., a Virginia corporation; DOE 1; and DOES 2 through 30, inclusive, Defendants.	Case No. 26CV501995 DEFENDANTS ROSS STORES, INC. AND ROSS DRESS FOR LESS, INC.'S VERIFIED ANSWER TO PLAINTIFF'S VERIFIED COMPLAINT Complaint Filed: August 26, 2026

Defendants ROSS STORES, INC., ROSS DRESS FOR LESS, INC., DOE 1, and DOES 2 through 20 ("Defendants") hereby answer the Verified Complaint filed by Plaintiff BRENDANT NGWA NFORBI ("Plaintiff"), in accordance with California Civil Procedure Code Section 431.30(d) as follows:

ANSWER TO COMMON ALLEGATIONS

1. In answer to paragraph 22 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 1 under "FACTUAL ALLEGATIONS."

2. In answer to paragraph 23 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 2 under "FACTUAL ALLEGATIONS."

3. In answer to paragraph 24 of Plaintiff's Verified Complaint, the answering Defendants an neither admit nor deny any allegations in paragraph 3 under "FACTUAL ALLEGATIONS."

4. In answer to paragraph 25 of Plaintiff's Verified Complaint, the answering Defendants admit that a Sprouts Farmers Market neighbors, but is detached from, the Sunnyvale Ross store location, deny all other allegations in paragraph 4 under "FACTUAL ALLEGATIONS."

5. In answer to paragraph 26 of Plaintiff's Verified Complaint, the answering Defendants admit that Plaintiff entered the store on the night of August 25, 2026, and can neither admit nor deny any other allegations in paragraph 5 under "FACTUAL ALLEGATIONS."

6. In answer to paragraph 27 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 6 under "FACTUAL ALLEGATIONS."

7. In answer to paragraph 28 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 7 under "FACTUAL ALLEGATIONS."

8. In answer to paragraph 29 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 8 under "FACTUAL ALLEGATIONS."

9. In answer to paragraph 30 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 9 under "FACTUAL ALLEGATIONS."

10. In answer to paragraph 31 of Plaintiff's Verified Complaint, the answering Defendants admit that surveillance cameras cover the entrance of the Sunnyvale Ross store and can neither admit nor deny any other allegations in paragraph 10 under "FACTUAL ALLEGATIONS."

11. In answer to paragraph 32 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 11 under "FACTUAL ALLEGATIONS."

12. In answer to paragraph 33 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 12 under "FACTUAL ALLEGATIONS."

13. In answer to paragraph 34 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 13 under "FACTUAL ALLEGATIONS."

14. In answer to paragraph 35 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any all allegations in paragraph 14 under "FACTUAL ALLEGATIONS."

15. In answer to paragraph 36 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 15 under "FACTUAL ALLEGATIONS."

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16. In answer to paragraph 37 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 16 under "FACTUAL ALLEGATIONS."

17. In answer to paragraph 38 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 17 under "FACTUAL ALLEGATIONS."

18. In answer to paragraph 39 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 18 under "FACTUAL ALLEGATIONS."

19. In answer to paragraph 40 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 19 under "FACTUAL ALLEGATIONS."

20. In answer to paragraph 41 of Plaintiff's Verified Complaint, the answering Defendants admit that employees did not touch Plaintiff and deny all other allegations in paragraph 20 under "FACTUAL ALLEGATIONS."

21. In answer to paragraph 42 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 21 under "FACTUAL ALLEGATIONS."

22. In answer to paragraph 43 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 22 under "FACTUAL ALLEGATIONS."

23. In answer to paragraph 44 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 23 under "FACTUAL ALLEGATIONS."

24. In answer to paragraph 45 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 24 under "FACTUAL ALLEGATIONS."

25. In answer to paragraph 46 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 25 under "FACTUAL ALLEGATIONS."

26. In answer to paragraph 47 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 26 under "FACTUAL ALLEGATIONS."

27. In answer to paragraph 48 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 27 under "FACTUAL ALLEGATIONS."

28. In answer to paragraph 49 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 28 under "FACTUAL ALLEGATIONS."

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29. In answer to paragraph 50 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 29 under "FACTUAL ALLEGATIONS."

30. In answer to paragraph 51 of Plaintiff's Verified Complaint, the answering Defendants admit that Plaintiff was not asked to produce a receipt and deny all other allegations in paragraph 30 under "FACTUAL ALLEGATIONS."

31. In answer to paragraph 52 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 31 under "FACTUAL ALLEGATIONS."

32. In answer to paragraph 53 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 32 under "FACTUAL ALLEGATIONS."

33. In answer to paragraph 54 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 33 under "FACTUAL ALLEGATIONS."

34. In answer to paragraph 55 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 34 under "FACTUAL ALLEGATIONS."

35. In answer to paragraph 56 of Plaintiff's Verified Complaint, the answering Defendants admit that no Ross merchandise was recovered from Plaintiff and no electronic article surveillance alarm sounded at the time of the incident; Defendants can neither admit nor deny any other allegations in paragraph 35 under "FACTUAL ALLEGATIONS."

36. In answer to paragraph 57 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 36 under "FACTUAL ALLEGATIONS."

37. In answer to paragraph 58 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 37 under "FACTUAL ALLEGATIONS."

38. In answer to paragraph 59 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 38 under "FACTUAL ALLEGATIONS."

39. In answer to paragraph 60 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 39 under "FACTUAL ALLEGATIONS."

40. In answer to paragraph 61 of Plaintiff's Verified Complaint, the answering Defendants admit that surveillance cameras captured the incident and can neither admit nor deny any other allegations in paragraph 40 under "FACTUAL ALLEGATIONS."

41. In answer to paragraph 62 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 41 under "FACTUAL ALLEGATIONS."

42. In answer to paragraph 63 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 42 under "FACTUAL ALLEGATIONS."

43. In answer to paragraph 64 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 43 under "FACTUAL ALLEGATIONS."

44. In answer to paragraph 65 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 44 under "FACTUAL ALLEGATIONS."

45. In answer to paragraph 66 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 45 under "FACTUAL ALLEGATIONS."

46. In answer to paragraph 67 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 46 under "FACTUAL ALLEGATIONS."

47. In answer to paragraph 68 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny allegations regarding Plaintiff's wishes and intent, and deny all other allegations in paragraph 47 under "FACTUAL ALLEGATIONS."

48. In answer to paragraph 69 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 1 under "ALLEGATIONS OF RACE-BASED SELECTION."

49. In answer to paragraph 70 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 2 under "ALLEGATIONS OF RACE-BASED SELECTION."

50. In answer to paragraph 71 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 3 under "ALLEGATIONS OF RACE-BASED SELECTION."

51. In answer to paragraph 72 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations pertaining to the facts alleged, in paragraph 4 under "ALLEGATIONS OF RACE-BASED SELECTION."

52. In answer to paragraph 73 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 5 under "ALLEGATIONS OF RACE-BASED SELECTION."

53. In answer to paragraph 74 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 6 under "ALLEGATIONS OF RACE-BASED SELECTION."

54. In answer to paragraph 75 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 7 under "ALLEGATIONS OF RACE-BASED SELECTION."

55. In answer to paragraph 76 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 8 under "ALLEGATIONS OF RACE-BASED SELECTION."

56. In answer to paragraph 77 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 1 under "THE MERCHANT'S PRIVILEGE DOES NOT APPLY."

57. In answer to paragraph 78 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 2 under "THE MERCHANT'S PRIVILEGE DOES NOT APPLY."

58. In answer to paragraph 79 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 3 under "THE MERCHANT'S PRIVILEGE DOES NOT APPLY."

59. In answer to paragraph 80 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 4 under "THE MERCHANT'S PRIVILEGE DOES NOT APPLY."

60. In answer to paragraph 81 of Plaintiff's Verified Complaint, the answering Defendants admit that Penal Code section 490.5(f)(1) states that "[a] merchant may detain a person for a reasonable time for the purpose of conducting an investigation in a reasonable manner whenever the merchant has probable cause to believe the person to be detained is attempting to unlawfully take or has unlawfully taken merchandise from the merchant's premises[,]" and deny all other allegations in paragraph 5 under "THE MERCHANT'S PRIVILEGE DOES NOT APPLY."

61. In answer to paragraph 82 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 6 under "THE MERCHANT'S PRIVILEGE DOES NOT APPLY."

62. In answer to paragraph 83 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 7 under "THE MERCHANT'S PRIVILEGE DOES NOT APPLY."

63. In answer to paragraph 84 of Plaintiff's Verified Complaint, the answering Defendants can neither admit nor deny any allegations in paragraph 1 under "PRESERVATION OF EVIDENCE."

64. In answer to paragraph 87 of Plaintiff's Verified Complaint, the answering Defendants realleges and incorporates by reference paragraphs 1 through 63, as set forth herein, in tandem with

paragraph 1 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

65. In answer to paragraph 88 of Plaintiff's Verified Complaint, the answering Defendants admits that Civil Code section 51(b) states that "[a]ll persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever[,]" and deny all other allegations in paragraph 2 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

66. In answer to paragraph 89 of Plaintiff's Verified Complaint, the answering Defendants admit that Civil Code section 51.5(a) states that "[t]his section shall be known, and may be cited as the Unruh Civil Rights Act[,]" and deny all other allegations in paragraph 3 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

67. In answer to paragraph 90 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 4 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

68. In answer to paragraph 91 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 5 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

69. In answer to paragraph 92 of Plaintiff's Verified Complaint, the answering Defendants admit all allegations in paragraph 6 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

70. In answer to paragraph 93 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 7 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

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71. In answer to paragraph 94 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 8 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

72. In answer to paragraph 95 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 9 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

73. In answer to paragraph 96 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 10 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

74. In answer to paragraph 97 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 11 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

75. In answer to paragraph 98 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 12 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

76. In answer to paragraph 99 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 13 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

77. In answer to paragraph 100 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 14 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

78. In answer to paragraph 101 of Plaintiff's Verified Complaint, the answering Defendants admit that Civil Code section 52(a) states that "[w]hoever denies, aids or incites a denial, or makes any discrimination or distinction contrary to Section 51, 51.5, or 51.6, is liable for each and every offense for the actual damages, and any amount that may be determined by a jury, or a court sitting without a jury, up to a maximum of three times the amount of actual damage but in no case less than four thousand dollars ($4,000), and any attorney's fees that may be determined by the court in addition thereto, suffered by any person denied the rights provided in Section 51, 51.5, or 51.6[,]" and deny all other allegations in

paragraph 15 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

79. In answer to paragraph 102 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 16 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

80. In answer to paragraph 103 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 17 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

81. In answer to paragraph 104 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 18 under "FIRST CAUSE OF ACTION Violation of the Unruh Civil Rights Act (Civil Code sections 51, 51.5, and 52) (Against All Defendants)."

82. In answer to paragraph 105 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 1 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

83. In answer to paragraph 106 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 2 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

84. In answer to paragraph 107 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 3 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

85. In answer to paragraph 108 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 4 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

86. In answer to paragraph 109 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 5 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

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87. In answer to paragraph 110 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 6 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

88. In answer to paragraph 111 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 7 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

89. In answer to paragraph 112 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 8 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

90. In answer to paragraph 113 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 9 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

91. In answer to paragraph 114 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 10 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

92. In answer to paragraph 115 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 11 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

93. In answer to paragraph 116 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 12 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

94. In answer to paragraph 117 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 13 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

95. In answer to paragraph 118 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 14 under "SECOND CAUSE OF ACTION False Imprisonment (Against All Defendants)."

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96. In answer to paragraph 119 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 1 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

97. In answer to paragraph 120 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 2 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

98. In answer to paragraph 121 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 3 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

99. In answer to paragraph 122 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 4 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

100. In answer to paragraph 123 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 5 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

101. In answer to paragraph 124 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 6 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

102. In answer to paragraph 125 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 7 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

103. In answer to paragraph 126 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 8 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

104. In answer to paragraph 127 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 9 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

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105. In answer to paragraph 128 of Plaintiff's Verified Complaint, the answering Defendants deny all allegations in paragraph 10 under "THIRD CAUSE OF ACTION Negligent Training and Supervision (Against the Corporate Defendants and Does 2 through 20)."

AFFIRMATIVE DEFENSES

FIRST AFFIRMATIVE DEFENSE

(Shopkeepers' Privilege)

(All Defendants)

Defendants allege that, if Plaintiff was detained or imprisoned, which Defendants deny, the detainment or imprisonment was conducted with probable cause, within a reasonable time for the purpose of investigating and performed in a reasonable manner.

SECOND AFFIRMATIVE DEFENSE

(Failure to State a Cause of Action)

(All Defendants)

The Complaint, and each and every cause of action alleged therein fails to state facts sufficient to constitute a cause of action for which relief may be granted.

THIRD AFFIRMATIVE DEFENSE

(Accidental or Unavoidable Injury)

(All Defendants)

The Complaint, and each and every cause of action alleged therein, is barred because Defendant was not negligent at the time of the accident.

FOURTH AFFIRMATIVE DEFENSE

(Acts of Other Parties)

(All Defendants)

Defendant alleges that, if Defendant is subjected to any liability by Plaintiff, it will be due in whole or in part to the acts and/or omissions of other parties, or parties unknown at this time, and any recovery obtained by Plaintiff should be barred or reduced according to law, up to and including the whole thereof.

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FIFTH AFFIRMATIVE DEFENSE

(Assumption of Risk)

(All Defendants)

The Complaint, and each and every cause of action alleged therein, is barred in that Plaintiff, with full knowledge of all risks attendant thereto, voluntarily and knowingly assumed any and all risks attendant upon Plaintiff's conduct, including any purported damages alleged to be related thereto and proximately caused thereby.

SIXTH AFFIRMATIVE DEFENSE

(Comparative Negligence)

(All Defendants)

Defendant alleges that Plaintiff was negligent, and otherwise at fault, with regard to the events alleged in the Complaint, and such negligence and fault is the proximate cause of any liabilities or damages Plaintiff may incur. Accordingly, Plaintiff's recovery, if any, should be precluded or reduced in proportion to their negligence and fault.

SEVENTH AFFIRMATIVE DEFENSE

(Exercise of Reasonable Care)

(All Defendants)

Defendant exercised reasonable care and did not know, and in the exercise of reasonable care could not have known, of the alleged acts or allegations in connection with the conditions which are the subject of the Complaint.

EIGHTH AFFIRMATIVE DEFENSE

(Failure of Others to Exercise Reasonable Care)

(All Defendants)

If Defendant is subjected to any liability herein, it will be due in whole, or in part, to the acts and/or omissions of other Defendants or other parties unknown at this time, and any recovery obtained by Plaintiff should be barred or reduced according to law, up to and including the whole thereof.

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NINTH AFFIRMATIVE DEFENSE

(Failure to Exercise Ordinary Care)

(All Defendants)

The Complaint, and each and every cause of action alleged therein, is barred in that Plaintiff failed to exercise ordinary and reasonable care on Plaintiff's own behalf and such negligence and carelessness was a proximate cause of some portion, up to and including the whole of, Plaintiff's own alleged injuries and damages, if any, and Plaintiff's recovery therefore should be barred or reduced according to law, up to and including the whole thereof.

TENTH AFFIRMATIVE DEFENSE

(Failure to Mitigate Damages)

(All Defendants)

Plaintiff failed to take reasonable steps and make reasonable expenditures to reduce Plaintiff's claims, damages, losses, if any, and that said failure to mitigate Plaintiff's damages bars or reduces any claims, losses, or damages.

ELEVENTH AFFIRMATIVE DEFENSE

(Lack of Notice)

(All Defendants)

Defendant alleges that it did not have either actual or constructive notice of the conditions, if any, which existed at the time and places mentioned in the Complaint, which conditions may have caused or contributed to the damages as alleged herein. Said lack of notice prevented Defendant from undertaking any measures to protect against or warn of said conditions.

TWELFTH AFFIRMATIVE DEFENSE

(Lack of Particularity)

(All Defendants)

The Complaint, and each and every cause of action alleged therein, is barred in that Plaintiff failed to particularize the claims in the Complaint, thereby depriving Defendant of the ability to ascertain the true bases of Plaintiff's claim, if any, and the law applicable to the claim.

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THIRTEENTH AFFIRMATIVE DEFENSE

(Reimbursement)

(All Defendants)

Defendant alleges that any reimbursement, from whatever source, to Plaintiff of the alleged damages must be applied against any liability of Defendant.

FOURTEENTH AFFIRMATIVE DEFENSE

(Several Liability for Non-Economic Damages)

(All Defendants)

If Defendant has any liability to Plaintiff in this action, which is denied, it is only severally liable for Plaintiff's non-economic damages under California Civil Code sections 1431.1 and 1431.2. Therefore, Defendant requests a judicial determination of the percentage of its negligence, if any, which proximately contributed to the subject incident.

FIFTEENTH AFFIRMATIVE DEFENSE

(Uncertainty)

(All Defendants)

Defendant alleges that the causes of action in the Complaint, and each of them, are uncertain and ambiguous as to Plaintiff's claim for damages against Defendant.

SIXTEENTH AFFIRMATIVE DEFENSE

(Additional Defenses)

(All Defendants)

Defendant may have additional defenses that cannot be articulated due to Plaintiff's failure to particularize Plaintiff's claims, due to the fact that Defendant does not have copies of certain DOCUMENTS bearing on Plaintiff's claims and due to Plaintiff's failure to provide more specific information concerning the nature of the damage claims and claims for certain costs for which Plaintiff alleges that Defendant may share some responsibility. Defendant therefore reserves the right to assert additional defenses upon further particularization of Plaintiff's claims, upon examination of the DOCUMENTS provided, upon discovery of further information concerning the alleged damage claims and claims for costs, and upon the development of other pertinent information.

PRAYER FOR RELIEF

WHEREFORE, Defendant prays for judgment as follows:

1. That Plaintiff takes nothing by way of the Complaint;

2. That judgment be entered against Plaintiff and in favor of Defendant on all causes of action;

3. That Defendant be awarded attorneys' fees and costs of suit incurred herein; and

4. That Defendant be awarded such other and further relief as the Court may deem just and proper.

DEMAND FOR JURY TRIAL

Defendant hereby demands a trial by jury in the above-entitled matter.

Dated: October 15, 2026

VOGL MEREDITH BURKE & STREZA LLP

BY: 

E. FORREST SHRYOCK, JR.
RAENALENE C. MUSNI
Attorneys for Defendants
ROSS STORES, INC. and
ROSS DRESS FOR LESS, INC.

Brendan Ngwa Nforbi v. Ross Stores, Inc., et al.
San Clara County Superior Court Case No. 26CV501995

VERIFICATION

I, Rachel De La Cruz, am authorized to make this declaration on behalf of Defendants Ross Stores, Inc., and Ross Dress for Less, Inc. I have reviewed the foregoing **Answer to Plaintiff's Verified Complaint** and know the contents thereof.

There exists no ONE person in the defendant business that is knowledgeable with respect to each and every issue to which the pleading pertains;

I have conducted a reasonable investigation in formulating this pleading and to which this document pertains; and

I am informed and believe that the information provided in this pleading is true and correct.

I declare under penalty of perjury under the laws of the State of California that the foregoing declaration is true and correct. Executed in Sunnyvale, California on the 8 day of October 2026.

Brendan Ngwa Nforbi vs. Ross Stores, Inc., et al.
Santa Clara County Superior Court Case No. 26CV501995

PROOF OF SERVICE

I, Katherine Eng, declare as follows:

I am a citizen of the United States, I am over the age of eighteen (18) years and am not a party to this action. I am employed in the City and County of San Francisco, State of California, and my business address is 456 Montgomery Street, Suite 1300, San Francisco, California, 94104.

On **October 15, 2026**, I served or caused the within: **Defendants Ross Stores, Inc. and Ross Dress for Less, Inc.'s Verified Answer to Plaintiff's Verified Complaint** on the attorney(s) of record in this action as follows:

X by placing a true copy thereof enclosed in a sealed envelope with postage thereon fully prepaid, and deposited the same for collection and **mailing** at San Francisco, California, following ordinary business practices, addressed as set forth below.

X by having a true copy thereof caused to be served via **electronic service** to the person(s) at the address(es) as set forth below.

In Pro Per:
Brendan Ngwa Nforbi
1455 Cat Tail Drive
Stockton, California 95204
Telephone No: (209) 801-4442
Email: bnn.cdl@gmail.com

I am readily familiar with this law firm's practice for the collection and processing of documents for regular and certified mailing, overnight mail, personal service, electronic transmission, and facsimile transaction and said document(s) are deposited with the United States Postal Service or overnight courier depository on the same day in the ordinary course of business.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct and that this declaration was executed on **October 15, 2026**, in San Francisco, California.

Katherine Eng